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File No.: EXP202210049

RESOLUTION OF FILE OF PROCEEDINGS

From the actions carried out by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: On September 7, 2022, a complaint was filed with entry registration number REGAGE22e00038721276 before the Spanish Agency for Data Protection against the owner of the page ***URL.1 (hereinafter, the complained party). The reasons for the complaint are as follows: Complaint filed by the father of a 9-year-old girl regarding a publication that includes an image in which the girl appears in her mother's arms, identifying the minor by her name and surname and providing her date of birth.

The image is published on the website ***URL.1. The complainant, through his representative, has contacted the entity that appears in the WHOIS registry as the registrar of the domain and provider of the hosting service: ***URL.2.

Along with the notification, the following documents are provided:

- Explanatory document of the attempts to exercise the right to erasure directed to GoDaddy by various means.
- Printout of the email sent to the domain registrar of the internet site in question, ***URL.2, exercising the right to erasure.
- Printout of the attempt to exercise rights through the profile of ***URL.2 on the social network Facebook.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the aforementioned complaint was forwarded to ***URL.2, so that it could analyze it and inform this Agency within one month of the actions taken to comply with the requirements established in data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was not received by the responsible party; the forwarding was reiterated on October 28, 2022, by certified postal mail, and was again returned as "unknown."

THIRD: On November 18, 2022, in accordance with Article 65 of the LOPDGDD, the complaint filed was admitted for processing.

FOURTH: The General Subdirectorate of Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the functions assigned to control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions of Title VII, Chapter I, Section two, of the LOPDGDD, being aware of the following points:

RESULT OF THE INVESTIGATIVE ACTIONS

Prior to the present actions, it is observed in the documentation provided that the complainant has exercised the right to erasure against the entity ***URL.2.

This entity, as stated in the response email, only processes the personal data of the domain registrants; therefore, this entity is not responsible nor in charge of the processing of personal data that may be carried out by the owners of the websites in their content.

It is verified through the WHOIS Internet tool that, in the domain registry, Domains by Proxy (affiliated with ***URL.2) is listed as the entity that registers the domain "****URL.1" and offers, through a form provided by ***URL.2, the possibility to request contact with the domain owner.

This form does not allow for text input or file attachments, but simply requests that the owner contact the sender.

On November 22, 2022, an email was received from the domain registrant informing that the content is produced by a group of bloggers providing a communication email address.

On November 23, 2022, this group was informed, through the provided email address, of the complaint

received by this Agency and requested to inform about the entity that manages the claimed website. A few hours later, a response email was received stating that they regret the error made and that they have proceeded to immediately remove the claimed content. However, they do not include any information regarding the entity that manages the website ***URL.1.

A diligence is incorporated into the present actions with a screenshot of the form and the exchange of emails between the acting inspector and the owner of the claimed domain.

On the same date, the acting inspector verifies that the claimed content has been removed from the web address indicated in the complaint.

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A diligence with a screenshot of this verification is incorporated into the present proceedings.

Regarding the determination of the entity that manages the website where the claimed content was published, only the information available in the internet domain registry is at hand. In this regard, the entity ***URL.2 already responded during the investigative proceedings of file E/06806/2020 that "[...] ***URL.2 maintains its records outside of Spain and, furthermore, is not subject to Spanish law.

Therefore, ***URL.2 cannot provide you with any information without a duly issued subpoena or court order. The subpoena or order must be issued by a state or federal court located in the United States."

LEGAL GROUNDS

I

Competence

In accordance with the functions conferred to each supervisory authority by Article 57.1 a), f), and h) of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR) and as provided in Articles 47 and 48.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to resolve these investigative proceedings.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, in so far as they do not contradict them, by the general rules on administrative procedures in a subsidiary manner."

II

Legality of Processing

The physical image of a person, according to Article 4.1 of the GDPR, is a personal data and its protection is therefore subject to this Regulation.

Article 4.2 of the GDPR defines "processing" as: "any operation or set of operations performed on personal data or sets of personal data, whether by automated means or not, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, communication by transmission, dissemination or any other form of enabling access, collation or interconnection, limitation, erasure or destruction."

Including images that identify or make identifiable a person in published videos constitutes processing of personal data and, therefore, the person who does so must rely on one of the legitimizing grounds indicated in Article 6 of the GDPR.

In these cases, as in the case subject to the complaint, the usual legitimizing ground is consent, in general. And it is the person who uploads the personal data and the images that can be viewed without any limitation who must demonstrate that they have that consent.

For this processing to be carried out lawfully, it must comply with the provisions of Article 6.1 of the GDPR, which states:

"1. Processing shall be lawful only if at least one of the following conditions is met:

a) the data subject has given consent to the processing of their personal data for one or more specific purposes;

- b) processing is necessary for the performance of a contract to which the data subject is party or in order to take steps at the request of the data subject prior to entering into a contract;
- c) processing is necessary for compliance with a legal obligation to which the controller is subject;
- d) processing is necessary to protect the vital interests of the data subject or of another natural person;
- e) processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller;
- f) processing is necessary for the purposes of the legitimate interests pursued by the controller or by a third party, except where such interests are overridden by the interests or fundamental rights and freedoms of the data subject which require protection of personal data, in particular when the data subject is a child.

The provision in paragraph f) of the first subparagraph shall not apply to processing carried out by public authorities in the performance of their tasks.”

III

Conclusion

The complaint submitted requested the removal of the image of the minor, as the complainant had requested it and had not succeeded. The image was removed hours later following the request by the Data Inspection through the email address provided by ***URL.2.

To identify the person who disseminated the image of the minor subject to the complaint, preliminary investigative actions were carried out, as established by Article 67 of the LOPDGDD, which states the following:

<<1. Before adopting the decision to initiate proceedings, and once the complaint has been admitted for processing, the Spanish Agency for Data Protection may carry out preliminary investigative actions in order to achieve a better determination of the facts and circumstances that justify the processing of the procedure.

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The Spanish Agency for Data Protection will act in any case when it is necessary to investigate processing that involves massive traffic of personal data.

2. The preliminary investigation actions shall be subject to the provisions of Section 2 of Chapter I of Title VII of this organic law and may not exceed a duration of twelve months from the date of the admission agreement or from the date of the agreement deciding its initiation when the Spanish Agency for Data Protection acts on its own initiative or as a result of the communication sent to it by the supervisory authority of another Member State of the European Union, in accordance with Article 64.3 of this organic law.

As indicated in the Facts of this resolution, it has not been possible to determine the entity that manages the website where the content was published; the entity ***URL.2 maintains its records outside of Spain and, furthermore, is not subject to Spanish Law.

Consequently, ***URL.2 cannot provide any information without a duly issued subpoena or court order. The subpoena must be issued by a state or federal court located in the United States.

Thus, in accordance with what has been stated, by the Director of the Spanish Agency for Data Protection,

IT IS AGREED:

FIRST: TO PROCEED TO FILE the present actions.

SECOND: TO NOTIFY this resolution to the complaining party.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in accordance with the provisions of Articles 112 and 123 of the aforementioned Law 39/2015, of October

1, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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